IN THE NATIONAL COMPANY LAW TRIBUNAL
COURT NO. IV, NEW DELHI
CA (CAA)-77/(ND)/2021

{Sections 230-232 and Other Applicable Provisions of the Companies Act, 2013 Read with Companies (Compromises, Arrangements, And Arrangements) Rules, 2016.

IN THE MATTER OF:

SCHEME OF AMALGAMATION
OF
CELESTE MERCHANDISE LIMITED
(Transferor Company No.1)
AND
DAYANIDHI NIRMAN PRIVATE LIMITED
(Transferor Company No.2)
AND
DURGESH ABASAN PRIVATE LIMITED
(Transferor Company No.3)
AND
PRABHU DHAN TRAVELS PRIVATE LIMITED
(Transferor Company No.4)
AND
RATHYATRA DISTRIBUTOR PRIVATE LIMITED
(Transferor Company No.5)
WITH
RAGHUNATH HOLDINGS AND FINLEASE PRIVATE LIMITED
(Transferee Company/Applicant Company No.1)
AND
THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

ORDER PRONOUNCED ON: 28. 10.2021

CORAM:
DR. DEEPTI MUKESH
HON'BLE MEMBER (JUDICIAL)

MS. SUMITAPURKAYASTHA
HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

CELESTE MERCHANDISE LIMITED
Having its registered office at:
8, Lynos Range, 5th Floor,
Kolkata-700001.

...Transferor Company No.1

DAYANIDHI NIRMAN PRIVATE LIMITED
Having registered office at:
Kamalaya Centre F-59, 1st Floor, 156A,
Lenin Sarani, Kolkata-700013

...Transferor Company No.2

DURGESH ABASAN PRIVATE LIMITED
Having registered office at:
Kamalaya Centre F-59, 1st Floor, 156A,
Lenin Sarani, Kolkata-700013

...Transferor Company No.3

PRABHU DHAN TRAVELS PRIVATE LIMITED
Having registered office at:
Kamalaya Centre F-59, 1st Floor, 156A,
Lenin Sarani, Kolkata-700013

...Transferor Company No.4

RATHYATRA DISTRIBUTOR PRIVATE LIMITED
Having registered office at:
Kamalaya Centre F-59, 1st Floor, 156A,
Lenin Sarani, Kolkata-700013

...Transferor Company No.5

WITH

RAGHUNATH HOLDINGS AND FINLEASE PRIVATE LIMITED
Having its registered office:
6926, Jaipuria Mills, Clock Tower,
Subzi Mandi, Delhi-110007

...Transferee Company/Applicant Company No.1

For the Applicants : Mr.Palash Agarwal, Adv.
For The OL : Ms.Hemlata Rawat St. Counsel
Mr.Aayushmaan Vatsyayana, Adv.

ORDER
Per- Dr. Deepti Mukesh, Member (Judicial)

1. This is an application filed by Raghunath Holdings and Finlease Private Limited (for brevity "Transferee Company"), under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement by way of amalgamation (hereinafter referred to as the "SCHEME") proposed between the applicants.

2. An affidavit in support of the above application is sworn by Mr. Amitabh Agarwal, being the authorized representative of the transferee company, who has been authorized vide board resolution dated 27.02.2021 passed at board meeting, which is placed on record. It is represented that the registered office of the applicant/ transferee company is under the domain of Registrar of Companies, NCT of New Delhi & Haryana and within the territorial jurisdiction of this Tribunal and the registered office of the transferor companies 1,2,3,4,5 falls under the ambit of Registrar of Companies, Kolkata and an application seeking appropriate directions has already been filed before NCLT, Kolkata Bench.

3. The Transferor No.1 Company is a private limited company incorporated on 13.10.1995 under the provisions of Companies Act, 1956 bearing CIN: U51109WB1995PLC074845, having registered office at 8, Lyons Range, 5th Floor, Kolkata -700001. The Authorized Share Capital of the Companyis Rs. 3,50,00,000/- (divided into 35,00,000 Equity Shares of Rs. 10/- each) and the Issued, subscribedand Paid-Up Share Capital is Rs. 3,50,00,000/- (divided into 35,00,000 Equity Shares of Rs. 10/- each). It is a non-banking finance company registered with the RBI.

4. The Transferor No.2 Company is a private limited company incorporated on 16.02.2010 under the provisions of Companies Act, 1956 bearing CIN: U45400WB2010PTC142280, having registered office at F-59, 1st Floor, 156A, Lenin Sarani, Kolkata - 700013. The Authorized Share Capital of the Company is Rs. 5,00,000/- (divided into 50,000 Equity Shares of Rs. 10/- each) and the Issued, subscribed and Paid-Up Share Capital is Rs.2,00,000/- (divided into 20,000 Equity Shares of Rs. 10/- each). The company is engaged in the business of real estate.

5. The Transferor No.3 Company is a private limited company incorporated on 19.03.2009 under the provisions of Companies Act, 1956 bearing CIN: U45400WB2009PTC134028, having registered office at F-59, 1st Floor, 156A, Lenin Sarani, Kolkata - 700013. The Authorized Share Capital of the Company is Rs. 10,00,000/- (divided into 1,00,000 Equity Shares of Rs. 10/- each) and the Issued, subscribed and Paid-Up Share Capital is Rs.9,00,000/- (divided into 90,000 Equity Shares of Rs. 10/- each). The company is engaged in the business of real estate.

6. The Transferor No.4 Company is a private limited company incorporated on 27.01.1995 under the provisions of Companies Act, 1956 bearing CIN: U64120WB1995PTC067919, having registered office at F-59, Kamalaya Center, 1st Floor 156A, Lenin Sarani Kolkata-700013. The Authorized Share Capital of the Company is Rs. 2,00,00,000/- (divided into 20,00,000 Equity Shares of Rs. 10/- each) and the Issued, subscribed and Paid-Up Share Capital is Rs. 1,96,82,050/- (divided into 19,68,205 Equity Shares of Rs. 10/- each). The company is engaged in the business of non-banking finance.

7. The Transferor No. 5 Company is a private limited company incorporated on 16.02.2010 under the provisions of Companies Act, 1956 bearing CIN: U51909WB2010PTC142307, having registered office at F-59, Kamalaya Center, 1st Floor 156A, Lenin Sarani Kolkata-700013. The Authorized Share Capital of

the Company is Rs.2,75,000/- (divided into 27,500 Equity Shares of Rs. 10/- each) and the Issued, subscribed and Paid-Up Share Capital is Rs. 2,72,000/- (divided into 27,200 Equity Shares of Rs. 10/- each). The company is engaged in the business of real estate.

8. The Transferee Company is a private limited company, incorporated on 02.09.1994 under the provisions of Companies Act, 1956, bearing CIN: U74899DL1994PTC061224 and having registered office at 6926, Jaipuria Mills, Clock Tower, Subzi Mandi, Delhi - 110007.The Authorized Share Capital of the Companyis Rs. 6,50,00,000/- (divided into 6,50,00,000Equity shares of Rs.1/- each) and the Issued, Subscribed and Paid-Up Share Capital is Rs. 6,05,29,800/- (Divided into 6,05,29,800 Equity Share of Rs. 1/- each). The company is registered with the Reserve Bank of India is a non-banking financial company and is carrying on business of non-banking finance. Prior intimation of the said merger has also been sent to Reserve Bank of India.

9. The copies of Memoranda and Articles of Association inter alia delineating their object clauses, as well as the last Audited Annual Accounts for the year ended 31st March 2020 and the provisional balance sheets upto31stJanuary 2021 of all the amalgamating companies hasbeen placed on record.

10. The Board of Directors the transferee company vide meeting held on 25th February, 2021 have unanimously approved the proposed Scheme of merger as contemplated above. Copy of resolution passed in the board meetings of the transferee company has been placed on record.

11. The certificates from statutory auditors in compliance under Section 133 of the Companies Act, 2013 read with Rule 7 of companies (Accounts) Rules, 2014 and other Generally Accepted Accounting Principles of all the amalgamating companies have been annexed.

12. It is stated that the Transferee Company is having twenty-seven Equity shareholders and no preference shareholders, certificate from Chartered Accountant certifying list of shareholders is annexed to the application. It is further represented that the Company has nil secured creditors and unsecured creditors, certificate from Chartered Accountants certifying list of secured and unsecured creditors is annexed.

    (i) In relation to the equity shareholders, it seeks dispensation with holding/convening of the meetings as consent affidavits are placed on record.

    (ii) In relation to the secured and unsecured creditors of the Company, it is stated that since there are nil secured and unsecured creditors therefore the requirement of holding/convening of the meetings does not arise.

13. The appointed date as specified in the Scheme is 1st April, 2021 subject to the directions of this Tribunal.

14. Taking into consideration the submissions and the documents filed therewith, we propose to issue the following directions with respect to calling, convening and holding of the meetings of the equity Shareholders, Secured and Unsecured Creditors or dispensing with the same as follows: -

A) In relation to the Transferee Company:

With respect to Equity shareholders: It is represented by the transferee company that there are twenty-seven equity shareholders in the Company. As consent affidavits from all the equity shareholders holding 100% in value is annexed therefore the requirement of holding/convening of the meetings is dispensed with.

With respect to Secured Creditors: It is represented by the transferee Company that there are nil secured creditors in the company. Therefore, the requirement of holding and convening the meetings does not arise.

With respect to Unsecured Creditors: It is represented by the transferee company that there are nil unsecured creditor in the Company. Therefore, the requirement of holding and convening the meetings does not arise.

15. Notice of this application shall also be served on the following Statutory Authorities:
    (i) Regional Director, Ministry of Corporate Affairs, B-2 Wing, 2 Floor, Paryawaran Bhavan, CGO Complex, New Delhi-110003;
    (ii) Registrar of Companies at 4 floor, IFCI Tower, 61, Nehru Place, New Delhi-110019;
    (iii) Official liquidator, Lok Nayak Bhavan, 8 Floor, Khan Market, New Delhi-110001;
    (iv) Income Tax Department, Income Tax Office, Additional Commissioner of Income Tax, Special Range 4, Central Revenue Building, IP Estate, New Delhi-110002. The notices to Income Tax Authorities shall disclose sufficient details like PAN, ward numbers and assessing officers
    (v) and to such other Sectoral Regulatory Authorities who may govern the working of the respective companies involved in the Scheme.

The application is allowed on the aforesaid terms and stands disposed off.

SD/-

SUMITAPURKAYASTHA
MEMBER (TECHNICAL)

SD/-

DR. DEEPTI MUKESH
MEMBER (JUDICIAL)